

# Altitude Xperience Pte Ltd v Simba Telecom Pte Ltd

**[2026] SGHC 133, Originating Claim No 171 of 2025**

General Division of the High Court of the Republic of Singapore

## Jurisdiction

Singapore

## Area of law

Tort - Trespass; Property Law - Licences; Statutory Interpretation - Telecommunications Act 1999

## Legal question

Whether the Defendant's occupation of two spaces in the Claimant's building, following expiration of a licence agreement, constitutes trespass, and if so, what damages are appropriate. Specifically, whether the spaces qualify as Mobile Installation Space (MIS) under the Code of Practice for Info-communication Facilities in Buildings 2018 (COPIF), which would entitle the Defendant to rent-free occupation under the Telecommunications Act 1999.

## Key facts

The Claimant leases the iFly Building in Sentosa. Since 21 December 2017, the Defendant placed mobile telecommunication equipment at two locations: a rooftop space and a ground floor space, initially under an oral agreement. A licence agreement covering 21 December 2017 to 19 September 2018 was executed in March 2020 and backdated. The Defendant paid \$5,770.40 for this period on 3 April 2020 and a further \$35,310 on 27 April 2020. The Defendant claimed the second payment was a goodwill gesture; the Claimant contended it was for fees from 20 September 2018 to 19 September 2019. COPIF came into force on 15 December 2018, creating an obligation for building owners to provide rent-free space for mobile installations. The Defendant claimed the spaces became MIS under COPIF and thus no rent was payable after that date. The parties engaged in prolonged negotiations and IMDA proceedings to resolve this dispute.

## Holding

The court held that the \$35,310 payment was made pursuant to an oral agreement for the period 20 September 2018 to 19 September 2019, as evidenced by documentary correspondence including invoices and payment records. No oral agreement existed for use of the spaces after 20 September 2019. Regarding the COPIF regime, the court found that the Defendant's right to rent-free space was contingent on the spaces qualifying as MIS (unused space). IMDA's binding decision of 2 June 2021, affirmed by the Minister on 23 July 2023, determined that the Rooftop Space was not "unused space" and therefore not MIS. As the spaces did not qualify as MIS, the Defendant was not entitled to rent-free occupation under COPIF. Consequently, the Defendant's continued occupation of the spaces after 20 September 2019 constituted trespass. The court awarded damages totalling \$698,594.50 calculated across three periods: \$40,392.50 for 20 September 2019 to 19 September 2020 (agreed licence fees plus legal costs); \$100,432 for 20 September 2020 to 23 July 2023 (annual licence fees pending IMDA determination); and \$557,770 for 24 July 2023 to end 2025 (loss of profit from inability to install additional air-conditioning at the Sky Garden venue). The court

rejected the Defendant's ancillary defences regarding waiver, estoppel, necessity, and the Claimant's failure to resort to self-help.

## **Significance**

This decision clarifies the application of the COPIF regime and the binding nature of IMDA determinations in trespass disputes involving telecommunications equipment. It establishes that IMDA's interpretation of 'unused space' under COPIF is final and not subject to re-litigation in court on substantive merits. The judgment emphasises that building owners may pursue conventional trespass remedies against telecommunications licensees whose occupation falls outside the statutory COPIF framework. It also addresses the proper calculation of damages for trespass in commercial contexts, distinguishing between agreed licence fees, lost business opportunities, and consequential losses, demonstrating the court's willingness to award substantial loss-of-opportunity damages where causation can be established.

## **Precedent impact**

The decision establishes binding precedent on the finality of IMDA determinations under the Telecommunications Act 1999 s 23 read with paragraph 2.2.10 of COPIF. It clarifies that while IMDA determinations do not have direct legislative effect, they are binding on the parties and their merits cannot be revisited in civil litigation absent a separate application for judicial review on administrative law grounds. The ruling confirms that trespass liability continues to apply to telecommunications licensees whose occupation lacks proper legal basis, notwithstanding regulatory frameworks that may provide alternative occupation routes. The judgment also provides guidance on interpreting regulatory codes of practice issued under the Telecommunications Act and the proper allocation of decision-making authority between regulatory agencies and courts.

## **Full judgment URL**

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